

Title Suit No. 313 of 2010

Court of the Assistant Judge, Sreemangal, Moulvibazar — certified copy — English translation and analysis

Record type : Civil court file — **plaint of 2007 and the final order of 27 May 2024, certified under section 76 of the Evidence Act 1872** [?]

What this document is — please read first

The file is a certified copy of two things: the **plaint (arji)** by which one Anoyara / Md. Anowar Ali [?] sued sixteen defendants over a plot of land in Mouza Shamerkona, and the court's final order dismissing that suit in 2024. It is typed Bangla and mostly legible; doubtful readings are marked [?] in red. Two points of caution. First, a **plaint** contains one side's allegations, not findings of fact — nothing in it is proof of anything. Second, this translation summarises the pleading rather than rendering it clause by clause; for any legal use, work from the certified original with a Moulvibazar advocate.

Why this matters to the family — read this before the detail

- Akram Ali is defendant No. 7 and Nurul Islam is defendant No. 8 in this suit. The land in dispute is in Mouza Shamerkona, J.L. No. 102 — the family's own mouza — and one of the two suit khatiyans is S.A. Khatiyan No. 79, of which the family obtained a certified copy on 21 October 2025.
- The **plaint** alleges that deeds standing in the names of defendants 7, 8 and 11 derive from a chain the plaintiff calls collusive and ineffective. In other words, the family's paper title to a portion of S.A. dag 2135 was directly challenged in this suit.
- The suit was dismissed on 27 May 2024 because the plaintiff did not appear. That is a favourable outcome — no decree was passed against anyone — but a dismissal for default is not a decision on the merits, and the court file should be checked for any application to restore the suit or any appeal.
- The suit land fronts the Shamsernagar Road and the **plaint** complains of kacha and pucca shop buildings being put up on it. The family's own Shamerkona holding includes R.S. dag 2902, recorded as Dokan (shop). Whether S.A. dag 2135 and R.S. dag 2902 are the same ground is NOT established by this document — the S.A.-to-R.S. conversion has to be checked against the mouza map or settlement records. That single question is what decides how important this file is.

1. The final order (Order No. 103, dated 27.5.2024)

District — Moulvibazar. Court : the Assistant Judge's Court, Sreemangal. Present : Janab Ayesha Siddika Ayman, Assistant Judge. Suit No. 313/2010. Anoyara Ali [?] — plaintiff, versus Chan Mia and others — defendants.

“Today is fixed for the plaintiff's step. The defendants have appeared separately. The plaintiff side is absent. The record is placed for order. Seen. The record is taken up for order. It is now 4.30 p.m. The plaintiff side is absent. In these circumstances the suit is liable to be dismissed. The court fee paid is correct. It is therefore ordered that this suit is dismissed for want of steps on the part of the plaintiff. Dictated by me and written.” Sd/- Assistant Judge, Sreemangal, Moulvibazar.

The copy carries the endorsements of the copying section of the District Judge's Court, Moulvibazar, and the certifying officer's seal. A one-taka court-fee stamp appears on the order sheet; the **plaint** bears court fee of Tk 200. Note a discrepancy worth checking: the **plaint** is verified 06.03.2007 and its court-fee seal reads 06.03.07, yet the suit is numbered 313 of 2010 — most likely the case was renumbered on transfer, but the advocate should confirm.

2. The parties

Plaintiff	Anoyara Ali [? — signed at the foot as Md. Anowar Ali], son of late Niyamat Ullah, of Shyamer Kona, P.O. Matarkapan, Thana / Upazila and District Moulvibazar
1–4	Chan Mia, Cherag Mia and Motin Mia, sons of late Nawab Ullah; and Jorina Begum, wife of Abdul Karim and daughter of late Nawab Ullah — all of Shyamer Kona
5	Ron Kumar Pal, son of late Ras Pal
6	Tahir Mia, son of late Kachir Mia
7	AKRAM ALI, son of late Achhiyat Ullah — of Shyamerkona
8	NURUL ISLAM, son of late Achhiyat Ullah — of Shyamerkona
9	Surendra Mohan Pal, son of late Surjya Moni Pal — now of Lathiyabil, P.O. Shantibazar, Thana Kamalganj, District Tripura, India
10	Inchan Mia, son of late Abdul Ali, of Shyamer Kona
11	Habibur Rahman, son of Md. Iliyas, of Choy Kut, P.O. Chotro Ghat, Kamalganj
12	Mizanur Rahman, son of late Murtuja Mia, of Barshijura, Moulvibazar
13	Sri Barindra Kumar Pal, son of late Rajendra Kumar Pal — now of Dharmapur, Kamalganj
14–16	Nani Kumar Pal and Bidhu Kumar Pal, sons of late Digendra Kumar Pal; and Subasini Pal, widow of late Digendra Kumar Pal

Defendants 1 to 12 are described as the principal defendants and 13 to 16 as proforma defendants.

3. The plaintiff's case, as pleaded

The suit land, .36 shatak in S.A. dag 2135, was once the sole property of Dinai Ram Pal, who died leaving four sons — Rajendra, Brajendra, Sachindra and Digendra Kumar Pal — and his wife Kailashini Pal. On an amicable partition the eastern .16 shatak of the dag fell to Brajendra's share and the western .20 shatak to Rajendra's. At the S.A. survey the land was recorded in final S.A. khatiyans 35 and 79 in the names of Dinai Ram Pal's sons and Kailashini, the .20 shatak standing in Rajendra Kumar Pal's name in khatiyan 35 and the disputed .16 shatak entered in Brajendra Kumar Pal's name in the remarks column.

The **plaint** adds that S.A. dags 1884 and 1907 — which lie outside the suit — had earlier been sold to one Khowaj Ullah, and that his name was therefore recorded in the S.A. record. This is the reason Khowaj Ullah appears in S.A. Khatiyan 79 alongside the Pal family.

The eastern .16 shatak: Brajendra Pal sold it to Jog Maya Pal, wife of Thakur Dhan Pal, by saf-kabala deed No. 1177 dated 30.01.1958 [? — the same deed is cited elsewhere in the plaint as 6.2.1958], the deed being executed with Digendra Pal joining at the buyer's request. The plaint says the quantity was written in that deed, in error, as three powa. Jog Maya Pal then sold on to Nawab Ullah — the predecessor of defendants 1–4 — by registered deed No. 3133 dated 2.5.1969.

The western .20 shatak: Rajendra Mohan Pal died leaving one son, defendant 13, Barindra Kumar Pal, who moved away to Dharmapur but kept possession. The plaintiff and defendant 12 (Mizanur Rahman) bought that .20 shatak from him by registered deed No. 974 dated 17.02.2004, defendant 14 Nani Kumar Pal being joined as a co-executant. The plaint says the quantity in that deed was written, in error, as .36 shatak instead of .20.

The dispute: the plaint alleges that defendants — with defendant 12 brought over to their side — procured a deed of release (mukti-patra) No. 6726 dated 27.12.2004 with Mizanur Rahman as executant, which the plaintiff says could not lawfully affect his share. The plaintiff obtained a certified copy of it on 17.12.2006 and, on investigating, alleges a further chain: that defendant 9, Surendra Mohan Pal, knowing Brajendra Pal had no right to sell Rajendra's .20 shatak, created a collusive deed over part of it; that Surendra Pal then registered deed No. 1452 dated 21.1.1970 in favour of one Akhtar Ullah; that deed No. 5107 dated 1.6.1970 followed in favour of Tahir Mia; and that further deeds were then created in the names of defendants 7, 8 and 11. The plaintiff alleges all of these are collusive, unlawful and ineffective, and that Surendra Mohan Pal left permanently for India immediately afterwards.

The plaint further alleges that Nawab Ullah mutated .20 shatak and defendant 6, Tahir, mutated .10 shatak in 1986, and says both mutations are invalid. The plaintiff, for his own part, applied for mutation; an on-site enquiry found him in possession of .06 shatak at the north-west corner of the dag, and mutation case No. 1543 of 2006–2007 produced mutation khatiyani No. 559 for that .06 shatak, on which he says he pays government khajna.

The plaint complains that for about two years defendants had been gradually erecting kacha and pucca shop buildings on the west and south side of the dag and forcibly occupying it, and that about two months before filing, defendant 10 Inchan Mia took unlawful possession on the south side of the .06 shatak.

The relief sought: partition of the .36 shatak of the first schedule by metes and bounds between the plaintiff and defendants 1–4; confirmation of the plaintiff's possession of the .06 shatak of the second schedule; a separate saham for his .10 shatak; and khas possession of that .10 shatak. The value of the claimed saham is stated as Tk 80,000. The plaintiff pleads that he demanded possession on 30.12.2006, that the defendants first agreed and then refused on 25.02.2007 (13 Falgun 1413), and that the cause of action arose accordingly.

4. The schedules

First schedule — District, Thana / Upazila : Moulvibazar. Mouza : Shyamara Kona, J.L. No. 102. S.A. Khatiyani Nos. 79 and 35. S.A. Dag No. 2135. Bounded north by the road; south by surveyed dag 2185, formerly Lokram, now Anar Mia; east by surveyed dag 2136, formerly Sarada Pal, now his heirs Sadhan Pal and others; west by the Shamsarnagar Road. Class Sail — .36 shatak.

Second schedule — same district, mouza and khatiyans. Bounded north by the road; south, within the same dag, by Inchan Mia and further south Habibur Rahman and others; east by the heirs of Nawab Ullah, Chan Mia and others; west by the Shamsarnagar Road. Being the north-west corner, class Sail bhit — .06 shatak.

5. Deeds and records cited in the plaint

Instrument	Date	What the plaint says of it
Saf-kabala No. 1177	30.01.1958 [? cited also as 6.2.1958]	Brajendra Kumar Pal → Jog Maya Pal — the eastern .16 shatak; quantity written in error as 3 powa
Deed No. 3133	2.5.1969	Jog Maya Pal → Nawab Ullah (predecessor of defendants 1–4) — the same .16 shatak
Deed No. 1452	21.1.1970	Surendra Mohan Pal → Akhtar Ullah [?] — alleged collusive
Deed No. 5107	1.6.1970	Akhtar Ullah [?] → Tahir Mia — alleged collusive and ineffective
Further deeds	dates not stated	created in the names of defendants 7, 8 and 11 — alleged collusive (this is the family's side)
Mutations of 1986	1986	Nawab Ullah .20 shatak; defendant 6 Tahir .10 shatak — alleged invalid
Deed No. 974	17.02.2004	Barindra Kumar Pal (with Nani Kumar Pal joined) → the plaintiff and Mizanur Rahman — the western .20 shatak; quantity written in error as .36
Release deed No. 6726	27.12.2004	executed by Mizanur Rahman — the deed the plaintiff principally attacks
Mutation case No. 1543 of 2006–07	2006–07	produced the plaintiff's mutation khatiyani No. 559 for .06 shatak

6. How this fits the family's own Shamerkona records

S.A. Khatiyani 79, which the family holds in certified copy, is one of the two suit khatiyans. Its dag-2135 row reads: class Sail, total of the dag 36 shatak, 16 shatak within this khatiyani, possession “Brajendra” — which corresponds exactly with the plaint's account that the eastern .16 shatak fell to Brajendra Kumar Pal. The plaint also explains why Khawaj Ullah's name sits in that khatiyani: dags 1884 and 1907 had been sold to him earlier. So the khatiyani and this court file corroborate each other on their face.

The open question is the survey conversion. The family's present Shamerkona holding is recorded in R.S. Khatiyani 22 and Mutation 1224 over R.S. dags 2888, 2893 and 2902 — 2902 being the shop (Dokan), 6 shatak, of which 3 shatak stands to the heirs. This file is about S.A. dag 2135. S.A. and R.S. dag numbers do not correspond, so nothing here tells us whether the shop plot is or is not part of the land this suit was about. Establishing the S.A.-to-R.S. correspondence for dag 2135 is therefore the single most useful next step — the mouza map or the settlement office conversion record will answer it.

Either way, one fact is now on record and should be treated as useful: a suit that put the family's deeds in issue over land in this mouza was dismissed in 2024 without any decree against the family. Obtain a certified copy of the complete order sheet, not only the final order, and have the advocate check the register for any restoration application or appeal before relying on it.

7. What to do next

1. Have the advocate inspect the record of Suit No. 313/2010 in the Assistant Judge's Court, Sreemangal — the full order sheet, the written statements filed, and whether any application to restore the suit, or any appeal, followed the dismissal of 27.5.2024.
2. Obtain a certified copy of S.A. Khatiyani No. 35 — the other suit khatiyani, which the family does not yet hold.
3. Establish the S.A. dag 2135 → R.S. dag correspondence from the mouza map or the settlement office. This determines whether the shop plot (R.S. 2902) is affected at all.
4. Obtain certified copies of any deeds standing in the names of Akram Ali or Nurul Islam over this land, and of deeds 1452/1970 and 5107/1970 from which the plaint says they derive. Fold this into the registry index search already planned for the Shamerkona dags.
5. Keep the original certified copy safe; it is evidence of the outcome and of what was alleged.

Prepared from a certified copy for family reference. Not legal advice, and not a clause-by-clause translation; to be reviewed with a land advocate in Moulvibazar. Companion to the Shamerkona, Jalalpur, 1980 Deed, 2018 Bundle, Cross-Reference and Inheritance Strategy documents.